



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 12 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12235

EXPIRATION DATE: April 12, 1999 or
upon completion of one shipment,
whichever occurs earlier.

1. GRANTEE: Thatcher Company
Salt Lake City, Utah
2. PURPOSE AND LIMITATION: This emergency exemption
~~authorizes the one-time transportation in commerce of~~
chlorine in a DOT Specification 106A500-X tank car tank
which developed a leak due to damage of an outlet valve.
The container is equipped with an emergency "B-Kit" to
prevent leakage during transportation. This exemption
provides no relief from the Hazardous Materials Regulations
(HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-
180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.24(b),
§ 179.300-12(b), § 179.300-13(a) and § 179.300-14.
5. BASIS: This emergency exemption is based on the application
of the Thatcher Company dated March 12, 1999, submitted in
accordance with § 107.117 and a determination that it is
necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorine	2.3	UN1017	Hazard Zone B

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a DOT Specification
106A500-X tank car tank which developed a leak due to damage
on an outlet valve. The tank car is equipped with an

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emergency "B-Kit" to prevent leakage during transportation.

b. The tank must be braced and blocked to prevent movement during transportation.

8. SPECIAL PROVISIONS: The tank will be transported by a motor vehicle owned by the Thatcher Company from Ogden, Utah to Salt Lake City, Utah, a distance of approximately 45 miles.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: a copy of this exemption must be carried aboard the motor vehicle used to transport the tank covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

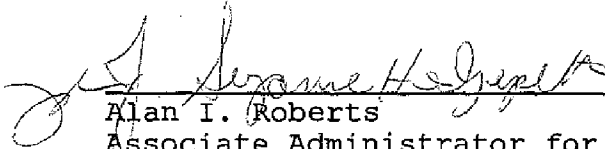
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS,

in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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